



## Notification Waiver Determination

### Francisco Partners - Blackline Safety

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| <b>Acquisition</b>           | Apollo Purchaser, Inc. ( <b>Apollo Purchaser</b> ) applied for a notification waiver in respect of its proposed acquisition of all of the issued and outstanding shares in Blackline Safety Corp. (together with its subsidiaries, <b>Blackline Safety</b> ), as described in the transaction documents provided as part of the application (the <b>Acquisition</b> ). |
| <b>Determination</b>         | The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.                                                                                                                                                                 |
| <b>Date of determination</b> | 6 May 2026                                                                                                                                                                                                                                                                                                                                                             |

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| <b>Parties to the Acquisition</b>    | <p>The acquirer, Apollo Purchaser, is a special purpose vehicle which is ultimately controlled by vehicles comprising funds advised by Francisco Partners Management L.P. (together with its affiliated funds, <b>Francisco Partners</b>). Francisco Partners is a global investment firm specialising in technology and technology-enabled businesses, headquartered in San Francisco, United States with offices in New York and London.</p> <p>The target, Blackline Safety, is a public company registered in Canada, headquartered in Calgary and listed on the Toronto Stock Exchange (TSE: BLN). Blackline Safety specialises in designing and manufacturing hardware enabled Software-as-a-Service products for worker safety monitoring. Its products include wearable devices, personal and area gas monitors and cloud-based data analytics software. Blackline Safety's products allow employers to monitor and communicate with lone workers and detect possible leakage of gas or other hazardous materials that may pose a threat to workers. The accompanying software streams data from devices in the field and enables employers to manage emergencies.</p> <p>Blackline Safety has a worldwide presence with customers in more than 75 countries, including Australia. Blackline Safety has an Australian subsidiary, Blackline Safety Australia Pty Ltd.</p> |
| <b>Explanation for determination</b> | <p>In making this notification waiver determination, the Australian Competition and Consumer Commission (the <b>ACCC</b>) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the <b>Act</b>).</p> <p>Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:</p> <ol style="list-style-type: none"><li>there is no competitive overlap between Francisco Partners (including its portfolio companies with operations in</li></ol>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

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|  | <p>Australia) and Blackline Safety in the manufacturing and supply of worker safety monitoring equipment (such as gas detection devices and lone worker SOS devices) in Australia</p> <p>b. there are alternative manufacturers and suppliers of worker safety monitoring equipment in Australia, including global and domestic suppliers.</p> <p>The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply.</p> <p>While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.</p> <p>The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition.</p> <p>For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's <a href="#">interim guidance on notification waivers</a> and <a href="#">merger assessment guidelines</a>.</p> |
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**Determination made by Commissioner Philip Williams pursuant to a delegation under section 25(1) of the Act**